

HOUSE No. 92

The Commonwealth of Massachusetts

PRESENTED BY:

Frank A. Moran

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating the Massachusetts digital equity broadband adoption program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Frank A. Moran</i>	<i>17th Essex</i>	<i>1/13/2025</i>

HOUSE No. 92

By Representative Moran of Lawrence, a petition (accompanied by bill, House, No. 92) of Frank A. Moran relative to establishing within the Executive Office of Housing and Economic Development a digital equity broadband adoption program. Advanced Information Technology, the Internet and Cybersecurity.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act creating the Massachusetts digital equity broadband adoption program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23A of the General Laws, as appearing in the 2018 Official
2 Edition, is hereby amended by inserting after section 68 the following new section:-

3 Section 69. (a) There shall established within the executive office of housing and
4 economic development a Massachusetts Digital Equity Broadband Adoption Program. The
5 purpose of the program shall be to expand the availability of broadband internet connectivity
6 throughout the commonwealth by providing financial assistance to eligible residents who cannot
7 afford any available service.

8 (b) For the purposes of this section the following words shall have the following
9 meanings unless the context clearly requires otherwise:

10 “Broadband service”, shall have the same meaning as defined in 7 C.F.R. § 1738.2.

11 “Provider”, a provider of broadband service in the commonwealth of Massachusetts.

(c) The office shall enter into an agreement with each provider under which the provider agrees to accept vouchers distributed by the office under this section as a form of payment for the provider's broadband internet service.

(d) In coordination with the department of elementary and secondary education, the office shall send information regarding the availability of financial assistance under this chapter to each family with students enrolled in kindergarten through twelfth grade. The information must include: (1) the name and contact information of each registered provider whose broadband Internet service is available in their school district; and (2) instructions for applying to the office for financial assistance under this section.

(e) An individual who receives information under subsection (d) may apply for financial assistance under this section in the manner specified by the office. Upon receipt of an application, the office shall determine: (1) the applicant's eligibility for financial assistance; (2) the amount of financial assistance for which the applicant is eligible; and (3) whether the applicant is eligible for a single payment or a recurring payment of financial assistance; based on the office's assessment of the applicant's need. (d) An applicant for financial assistance under this chapter: (1) who is receiving, or whose household includes an individual who is receiving, benefits under: (A) the Temporary Assistance for Needy Families (TANF) program; (B) the federal Supplemental Nutrition Assistance Program (SNAP); or (C) the Medicaid program; or (2) whose household includes a child who is eligible for free or reduced price lunch; is automatically eligible for financial assistance under this chapter.

(f) If the office determines that an individual is eligible for financial assistance under subsection (e), the office shall provide financial assistance to the individual in the form of 1 or

more vouchers, each in the amount of fifty dollars (\$50), that can be used by the individual to pay 1 or more of the following expenses: (i) Fees charged by a broadband provider for installation, activation, equipment purchase, WiFi extenders or other 1 time expenses of providing broadband Internet service to the individual; or (ii) monthly subscription fees charged by a broadband Internet provider for the provision of broadband Internet service to the individual, including modem and router charges. A voucher may be provided by the office in printed or electronic form.

(f) A registered broadband provider that receives a voucher under this section from an individual who subscribes to the provider's broadband Internet service shall deduct the amount of the voucher from the amount owed by the subscriber for the provider's provision of broadband Internet service to the individual.

SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting after section, the following new section:-

Section 2GGGGG. There shall be established a Broadband Adoption Digital Equity Fund to support the implementation of the Massachusetts Digital Equity Broadband Adoption Program established in section 69 of chapter 23A , and to provide residential internet service and related equipment and multilingual digital learning services to individuals through low-cost programs from both private broadband providers and federal assistance programs. The fund shall be administered by the secretary of housing and economic development. There shall be credited to the fund any revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund and any gifts, grants, private contributions or investment income earned on the fund's assets and all other sources; provided, that not less than

56 50 percent of the funds shall be derived from an assessment on providers of broadband services,
57 as defined in section 69 of chapter 23A of the General Laws . Money deposited in the fund that is
58 unexpended at the end of the fiscal year shall not revert to the General Fund and shall be
59 available for expenditure in the subsequent fiscal year and shall not be subject to section 5C.